

		evidence of real-world obstacles than this quotation from <i>Gentry</i> and the fact that Driver Partners were required to agree to arbitration as a condition of work, published authority holds this showing is sufficient to satisfy a plaintiff’s burden on the fourth factor. (See <i>Garrido v. Air Liquide Industrial U.S. LP</i> (2015) 241 Cal.App.4th 833, 846-847.) Accordingly, even if the Court hadn’t found the arbitration agreement unconscionable and thus unenforceable, it would still invalidate the class waiver under <i>Gentry</i>. V. <u>Conclusion</u> Because the arbitration agreement is both procedurally and substantively unconscionable, Defendant’s motion is denied. Moreover, even if the agreement were otherwise enforceable, the class action waiver is invalid under <i>Gentry</i>.
9	PELORUS FUND REIT, LLC, a Delaware limited liability company vs. ARGENT INSTITUTIONAL TRUST COMPANY, as Successor in interest to Acquiom Agency Services LLC, a Florida corporartion 2026-01563653	Defendant's Motion to Strike - Anti SLAPP Defendant's Motion to Strike - Anti SLAPP CONTINUED TO 8/4/2026
10	Albert vs. Tyler Technologies, Inc. 2025-01462434	Defendant's Demurrer to Amended Complaint Defendant's Demurrer to Amended Complaint Defendant's Motion to Strike - Anti SLAPP Defendant's Motion for Beth Petronion's to Appear Pro Hac Vice CONTINUED TO 9/4/2026